FOR ARGUMENT

DISTRIBUTED

OCT 22 2001

No. 00-9280

Supreme Court, U.S.
FILED
OCT 17 2001
CLERK

In the
Supreme Court of the United States

WILLIAM ARTHUR KELLY, *PETITIONER*,

v.

SOUTH CAROLINA, *RESPONDENT*.

ON WRIT OF CERTIORARI TO THE
SUPREME COURT OF SOUTH CAROLINA

BRIEF FOR RESPONDENT

CHARLIE CONDON
Attorney General for the
State of South Carolina

JOHN W. McINTOSH
Chief Deputy Attorney General

DONALD J. ZELENKA
Assistant Deputy Attorney General

*S. CREIGHTON WATERS
*Counsel of Record
Assistant Attorney General
Post Office Box 11549
Columbia, South Carolina 29211
(803) 734-3680
Counsel for Respondents

RECEIVED
OCT 22 2001
OFFICE OF THE CLERK
SUPREME COURT, U.S.

BEST AVAILABLE COPY

CAPITAL CASE

QUESTION PRESENTED

Whether the due process right of rebuttal identified in *Simmons v. South Carolina*, 512 U.S. 154 (1994), required an instruction on parole ineligibility, even though the prosecution did not expressly raise future dangerousness to society as a basis for death, and there is nothing to suggest the jury was concerned with or confused about the defendant's parole status?

TABLE OF CONTENTS

QUESTION PRESENTED i

TABLE OF CONTENTS ii

TABLE OF AUTHORITIES v

CITATION TO OPINION BELOW 1

JURISDICTION 1

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED 1

RESPONDENT'S STATEMENT OF THE CASE 1

A. Procedural History 1

B. Statement of the Guilt Phase Evidence Presented at Trial 4

C. Presentation and resolution of the federal issue at trial 7

D. The South Carolina Supreme Court's resolution of the federal issue on direct appeal 13

SUMMARY OF ARGUMENT 14

ARGUMENT 17

I. In order for the rule in *Simmons* to be triggered, future dangerousness to society must be expressly presented to the jury; parole ineligibility does not to rebut purely retributive arguments based on the circumstances of the capital crime or the defendant's other misconduct, nor does it rebut arguments or evidence that the defendant will be dangerous in prison. 17

A. Petitioner posits a test without standards and suggests an expansion of *Simmons*, with his argument that future dangerousness to society is raised merely by evidence and argument of prior bad acts or circumstances of the capital crime. .. 18

B. For *Simmons*'s due process right of rebuttal to be triggered, future dangerousness to society must be expressly submitted to the jury through either prosecution argument, evidence, or the judge's charge. 25

C. *Simmons* is not triggered by prosecution argument as to a defendant's future dangerousness to other inmates and prison staff, because information about the unavailability of parole does nothing to rebut such a claim. 30

D. It is not inappropriate for prosecutors to decide as a tactical matter whether or not to raise future dangerousness to society. 35

II. The prosecution in Petitioner's case did not expressly raise future dangerousness to society but rather focused on retribution. 37

A. "Doesn't that make somebody a little more dangerous [to the victim]?" 38

B. "Bloody Billy, the butcher of Batesburg" 40

C. "Murderers will be murderers." 41

D. "More frightening than a serial killer . . ." 43

E. Cross-examination on reports in Petitioner's mental health records 44

III. Since the jury never inquired about parole and the trial judge did not broach the issue by giving a "no concern" charge, *Simmons* was satisfied by the judge's plain meaning instruction and the defense's argument to the jury that Petitioner would never leave prison. 47

IV. South Carolina may remain true to its state law rule that disfavors introduction of collateral circumstances such as parole, as long as the state honors the due process rule of *Simmons* in the limited situations to which it applies. 49

CONCLUSION 50

TABLE OF AUTHORITIES

FEDERAL CASES

Allridge v. Scott, 41 F.3d 213 (5th Cir. 1994) 33

Bailey v. Anderson, 326 U.S. 203 (1945) 45

Brooks v. Kemp, 762 F.2d 1383 (11th Cir. 1985); 27

Coleman v. Brown, 802 F.2d 1227 (10th Cir. 1986) 27

Donnelly v. DeChristoforo, 416 U.S. 637 (1974) 40, 41

Eddings v. Oklahoma, 455 U.S. 104 (1982) 28

Gardner v. Florida, 430 U.S. 349 (1977) 37

Gregg v. Georgia, 428 U.S. 153 (1976) 27

Harmelin v. Michigan, 501 U.S. 957, 2704 (1991) 27

Payne v. Tennessee, 501 U.S. 808 (1991) 28

Ramdass v. Angelone, 120 S.Ct. 2113 (2000) 17, 19, 20, 31, 35, 49

Shafer v. South Carolina, 121 S.Ct. 1263 (2001) 14, 47

Simmons v. South Carolina, 512 U.S. 154 (1994) . . . . . *passim*

Skipper v. South Carolina, 476 U.S. 1 (1986) . . . 25, 30, 34-36

United States v. Flores, 63 F.3d 1342 (5th Cir. 1995) 33

United States v. Madrid, 673 F.2d 1114 (10th Cir. 1982) . . . 46

United States v. Pungitore, 910 F.2d 1084 (3rd Cir. 1990) . . 41

STATE CASES

Allen v. State, 662 So.2d 323 (Fla. 1995) 28, 36

Bell v. State, 938 S.W.2d 35 (Tex. Crim. App. 1996) 19

Collier v. State, 959 S.W.2d 621 (Tex. Crim. App. 1997) . . 33

Commonwealth v. Bridges, 757 A.2d 859 (Pa.. 2000) 21

Commonwealth v. May, 710 A.2d 44 (Pa. 1998) 29

Garcia v. State, 626 S.W.2d 46 (Tex. Crim. App. 1982) . . . 22

Keeton v. State, 724 S.W.2d 58 (Tex. Crim. App. 1987) 22, 23

Lovitt v. Commonwealth, 537 S.E.2d 866 (Va. 2000) 24

Marshall v. State, 963 P.2d 1 (Okla. Crim. App. 1998) 24

Parker v. State, 456 So.2d 436 (Fla. 1984) 28, 36

People v. Coleman, 660 N.E.2d 919 (Ill. 1996) 21

People v. Musselwhite, 954 P.2d 475 (Ca. 1998) 20

Rhines v. Weber, 608 N.W.2d 303 (S.D. 2000) 21, 29

Roney v. State, 632 S.W.2d 598 (Tex. Crim. App. 1982) . . . 22

State v. Bey, 709 N.E.2d 484 (Ohio 1999) 29

State v. Bey, 736 A.2d 469 (N.J. 1999) 28

State v. Bush, 942 S.W.2d 489 (Tenn. 1997) 21

State v. Chapman, 454 S.E.2d 317 (S.C. 1995) 48

State v. Comeaux, No. 93-2729, 699 So.2d 16 (La. 1997) . . 21

State v. Feaster, 716 A.2d 395 (N.J. 1998) 21

State v. Hutto, 481 S.E.2d 432 (S.C. 1997) 46

State v. Kelly, 540 S.E.2d 851 (S.C. 2001) . . . . . *passim*

State v. Koskovich, 776 A.2d 114 (N.J. 2001) 36

State v. Middleton, 339 S.E.2d 692 (S.C. 1986) 35

State v. Mitts, 690 N.E.2d 522 (Ohio 1998) 21

State v. Richmond, 495 S.E.2d 677 (N.C. 1998) 21, 33

State v. Rogers, 466 S.E.2d 360 (S.C. 1996) 18

State v. Rose, 451 S.E.2d 211 (N.C. 1994). 27

State v. Singleton, 326 S.E.2d 153 (S.C. 1985) 35

State v. Southerland, 447 S.E.2d 862 (S.C. 1994) 18, 48

State v. Sullivan, 282 S.E.2d 838 (S.C. 1981) 45

State v. Thomas, 156 S.E.2d 169 (S.C. 1930) 45

State v. Torrence, 406 S.E.2d 315 (S.C. 1991) 49

State v. Tucker, 845 P.2d 904 (Or. 1993) 24

State v. Tucker, 464 S.E.2d 105 (S.C. 1995) 18

State v. Warren, 499 S.E.2d 431 (N.C. 1998) 21, 27, 28

State v. Williams, 468 S.E.2d 626 (S.C. 1996) 17

State v. Young, 459 S.E.2d 84 (S.C. 1995) 18, 28

Teffeteller v. State, 439 So.2d 840 (Fla. 1983) 36

Turrentine v. State, 965 P.2d 955 (Okla. Crim. App. 1998) 24

Wallace v. State, 618 S.W.2d 67 (Tex. Crim. App. 1981) . . . 22

Wisehart v. State, 693 N.E.2d 23 (Ind. 1998) 27, 36

FEDERAL STATUTES AND RULES

28 U.S.C. § 1257 1

Fed. R. Evid. 404(b) 29

Fed. R. Evid. 803(3) 29

STATE STATUTES AND RULES

Okla. Stat. Ann. tit. 21, § 701.12 (West 2000) 24

Or. Rev. Stat. § 163.150 (1999) 24

S.C. Code Ann. § 16-3-20 (Supp. 2000) 9, 13, 26, 38

S.C. Code Ann §§ 24-21-920 to -1000 (1977 & Supp. 2000) 49

Tex. Crim. Proc. Code Ann. § 37.071 (West 2001) 22

Va. Code Ann. § 19.2-264.2 (Michie 2000) 24

Rule 703, SCRE 46

Rule 802, SCRE 46

CITATION TO OPINION BELOW

The decision of the Supreme Court of South Carolina affirming Petitioner's convictions and sentences is reported as *State v. Kelly*, 540 S.E.2d 851 (S.C. 2001). This decision is reprinted in the Appendix to Petitioner's brief.

JURISDICTION

The decision of the Supreme Court of South Carolina was entered on January 8th, 2001. The petition for writ of certiorari was granted on June 25, 2001. This Court's jurisdiction is apparently invoked pursuant to 28 U.S.C. § 1257, Petitioner having asserted below, and asserting herein, deprivation of rights secured by the United States Constitution.

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

This case involves:

1. The Fourteenth Amendment to the United States Constitution, which forbids, in pertinent part, the deprivation of "life, liberty, or property, without due process of law."

2. Section 16-3-10 *et seq.* of the Code of Laws of South Carolina, which is reprinted in the Appendix to Petitioner's Brief.

RESPONDENT'S STATEMENT OF THE CASE

A. Procedural History

Petitioner, William Arthur Kelly, is presently confined to the Lieber Correctional Institution of the South Carolina

Department of Corrections pursuant to orders of commitment from the Clerk of Court for Lexington County. During the November 1996 term, the Lexington County Grand Jury indicted Petitioner for murder, kidnapping, armed robbery, and possession or display of a knife during the commission of a violent crime. JA 2-4. On October 14th, 1997 and February 16th, 1998, Eleventh Circuit Solicitor Donald V. Myers gave notice of intent to seek the death penalty, and on August 13th, 1998, the state served its Notice of Evidence in Aggravation.

The case was called for trial before the Honorable Gary E. Clary and a jury on September 14th, 1998. On September 17th, 1998, Petitioner's jury convicted him of all four charges.

The sentencing phase of his trial began on September 18th, 1998. After presentation of evidence, Judge Clary submitted the following aggravating factors to the jury:

> (1) Murder committed while in the commission of a kidnapping;
>
> (2) Murder committed while in the commission of a burglary;
>
> (3) Murder committed while in the commission of a robbery while armed with a deadly weapon;
>
> (4) Murder committed while in the commission of larceny with use of a deadly weapon;
>
> (5) Murder committed while in the commission of physical torture.

JA 291-92. The following mitigating factors were submitted to the jury:

> (1) The defendant has no significant history of prior criminal conviction involving the use of violence against another person;
>
> (2) The age of the defendant at the time of the crime;
>
> (3) The defendant was below the age of eighteen at the time of the crime.

Judge Clary also instructed the jurors that they could consider any non-statutory mitigating circumstance. JA 297.

On September 19th, 1999, Petitioner's jury found the existence of all five (5) aggravating factors and recommended a sentence of death. That same day, Judge Clary sentenced Petitioner to death for murder, to thirty (30) years for armed robbery, and to a consecutive five (5) years for possession of a knife during commission of a violent crime. Since Petitioner was sentenced to death, Judge Clary did not sentence him for kidnapping pursuant to the rule in section 16-3-910 of the Code of Laws for South Carolina. R. 2094-97.

A timely Notice of Appeal was filed and served on September 21st, 1998. In the direct appeal to the South Carolina Supreme Court, Petitioner was represented by Assistant Appellate Defender Robert M. Dudek. Assistant Attorney General S. Creighton Waters represented Respondent. Both parties filed briefs in the appeal, and Petitioner presented the following issues, *inter alia*:

> I. Whether the judge denied Due Process by refusing to instruct the jury that "life imprisonment" meant imprisonment "until death of the offender", since the state offered evidence

of future dangerousness, the solicitor argued future dangerousness, and appellant's request to charge #1 was a correct statement of South Carolina law, was mandated by *Simmons v. South Carolina*, and the judge had a duty to charge it?

II. Whether the judge erred by refusing to charge, in the alternative, that future dangerousness was not an issue, since the state stipulated that future dangerousness was not an issue, and appellant was entitled to have that stipulation, defense request to charge #2, heard by the jury?

The South Carolina Supreme Court heard oral argument on September 20th, 2000, and the court issued its opinion affirming Petitioner's conviction and sentence on January 8th, 2001. *State v. Kelly*, 540 S.E.2d 851 (S.C. 2001). On January 23rd, 2001, Attorney Dudek filed on behalf of Petitioner a "Petition for Stay of Execution". The Remittitur was sent down on January 24th, 2001. On January 25th, 2001, the state filed a letter Return in which it did not object to Petitioner's requested stay of execution. The South Carolina Supreme Court on February 7th, 2001 granted the motion for stay of execution.

Petitioner sent his petition for writ of certiorari to the United States Supreme Court on April 3rd, 2000, and the petition was docketed on April 5th, 2000. Certiorari was granted on June 25th, 2001.

B. Statement of the Guilt Phase Evidence Presented at Trial

Although the defense requested and the judge gave a charge on voluntary manslaughter at trial, it is undisputed that Petitioner brutally killed 25-year-old and pregnant Shirley Slade

Shealy by stabbing her over thirty times at a Kentucky Fried Chicken (KFC) restaurant in Batesburg. Shealy was Petitioner's former boss and a close friend of his sister.

Shealy was the manager of the KFC restaurant and was last seen closing up for the night. A police officer who observed Shealy's left running with the door open in the KFC parking lot discovered a grisly scene inside the restaurant. When found, Shealy's hands were bound behind her back with duct tape, and she was near an overturned chair covered with blood and tape. A piece of an opaque latex glove was found attached to the duct tape, and a bloody dive knife was found on a rack in the kitchen. Over $1000 in cash was scattered throughout the scene, including a number of bills found stuck to the victim with her own blood. When the floor safe was later opened, it was virtually empty except for a ripped deposit bag and a deposit slip. R. 1292-93, 1302, 1337-39, 1423-42, 1510-11, 1565.

Large amounts of blood spatter throughout the kitchen and hallway of the restaurant indicated a struggle and repeated violent blows during Petitioner's sustained assault on Shealy. JA 27-33; R. 1437-43. The pathologist, Dr. Sexton, testified that there were thirty-one (31) stab or incision wounds to Shealy, including around twenty (20) wounds to her back. Petitioner also slit Shealy's throat from ear to ear, severing both her jugular vein and her airway. Shealy had no defensive wounds because he hands were bound behind her back. JA 34-45.

Items in the back seat floorboard of the victim's car had been pushed over to the passenger side, leading police to theorize that Petitioner had concealed himself in Shealy's car and waited for her. R. 1295, 1331-33, 1451-54.

Police promptly started interviewing KFC employees and others who were at the KFC on January 5th. Eventually, they

attempted to contact Petitioner, but they found out he did not come home that night. Petitioner's mother filed a missing persons report on Petitioner the next day. R. 1335-37.

The break in the case came on the afternoon of January 8th, when Petitioner's mother told police that Petitioner was at his sister's house in Lowell, Massachusetts. R. 1340-41, 1353-54. There, Lowell police found Petitioner, who orally admitted to the murder and later signed a written statement. In the statement, Petitioner claimed he had to stab Shealy because she kept trying to have sex with him. He stated he panicked, took some money, and drove from South Carolina to Lowell. He stopped to buy some clothes on the way. JA 16-27; R. 1358-64, 1365-74.

When Lowell police searched Petitioner, they found cash stained with Shealy's blood. R. 1387, 1470, 1555. Petitioner's car also contained his pants, T-shirt, and shoes covered in the victim's blood. R. 1462-64, 1556. Finally, sneakers found in Petitioner's car matched bloody footprints found at the scene. R. 1475-76.

Further proof of Petitioner's robbery plan came from employees of the KFC, who testified that it was common knowledge among employees that money taken in after late afternoon was kept overnight in the floor safe. R. 1258, 1490-91. The employees also testified that the knife, duct tape, and latex gloves used by Petitioner were not of the type normally used by the KFC. R. 1268-70, 1495-97, 1500-01.

The defense rested in the guilt phase without presenting a case.

C. Presentation and resolution of the federal issue at trial

During his opening statement in the penalty phase, the solicitor began with themes of retribution, stating that the death penalty was the "only one sentence for the brutal, bloody, butchering murder [that Petitioner] committed", and that the death penalty was "the punishment that fits the crime". JA 63-64. After discussing the aggravating factors, the solicitor recounted how the murder and robbery was planned, and pointed out that Petitioner killed the victim even though he knew she was pregnant. JA 64-67. The solicitor concluded by again stating that "there's only one sentence for this crime". JA 68.

The state's penalty phase evidence began with the pathologist and crime scene analysts, who testified about Petitioner's exceptionally brutal and prolonged assault on pregnant Shirley Shealy. JA 156-75; R. 1802-19. The pathologist testified that Shealy's baby was healthy and normal, and might have even survived had it been born in a hospital setting at the time of the mother's death. JA 175-78. The state also presented victim impact testimony from family members about the devastating effect Shealy's death had on her husband, young son, parents, in-laws, and siblings. R. 1848-80.

Jail guards testified about Petitioner's behavior in prison, including an incident where Petitioner refused to obey orders. JA 72-74. Petitioner also was in a small cell with two others where correctional officers discovered that the mortar around a cinder block had been dug away. The inmates attempted to conceal the work by stuffing colored toilet tissue in the cracks. JA 78-84, 91-102, 106-17.

A fellow inmate testified that Petitioner frequently talked of escape and even targeted a particular slightly-built female

guard as his hostage. One time, Petitioner hid a shank in his hand when he called the guard over to the cell door, but he ultimately backed out of his escape plan. JA 129-33. A correctional officer confirmed finding on Petitioner a shank made from a toothbrush and a metal object. JA 139-42.

Another former inmate testified that Petitioner bragged about his crime, asked other inmates to call him "KFC," and talked about taking a nurse hostage. JA 146-49. Petitioner carried a styrofoam cup on which he had drawn a knife, a decapitated chicken, and the words "KFC". JA 134-35, 148-49.

The defense case in mitigation began first with evidence that Petitioner had no history of significant criminal convictions or juvenile adjudications. R. 1886, 1888. Petitioner's mother testified that he had a normal childhood and even did well academically until high school, when his grades went bad and he started getting into trouble. R. 1893-1903.

A defense psychologist stated that Petitioner has average intelligence and no mental illnesses. The most the psychologist could say is that Petitioner might have been on his way to an alcohol problem. According to the psychologist, Petitioner is adaptable to prison, and Petitioner's possession of a shank, talk of escape, and drawing of a decapitated chicken was just the typical "puffing" often done by younger, smaller-built inmates. JA 178-93. On cross-examination, the state asked the defense psychologist how his opinion about adaptability and Petitioner's lack of mental illness was affected by reports in the mental health records that Petitioner had violent fantasies of getting away with killing people who have wronged him, and had tortured and killed small animals. JA 194-99, 218-19.

Former warden James Aiken also testified Petitioner was adaptable to prison life and easily managed and contained by the South Carolina Department of Corrections. Aiken theorized that Petitioner might be victimized in the harsh world of prison. JA 220-42; R. 1971-73.

Before closing arguments in the sentencing phase, the defense requested the judge charge from S.C. Code § 16-3-20(A) that a life sentence meant "until death of the offender", and could not be reduced by parole, community supervision, any type of work or early release program, or any type of credits. After the solicitor stated that there were no *Simmons v. South Carolina* issues because he was not going to argue future dangerousness, the defense asserted the state had in fact raised future dangerousness through evidence of escape attempts, a plan to take a guard hostage, and cross-examination of the defense experts on jail records. In response, the solicitor stated that those only went to past conduct, and he did not bring in a mental health expert to testify Petitioner would be dangerous in the future. The solicitor also noted the distinction under *Simmons* between danger to those inside prison and danger to outside society. The trial court ultimately ruled that the future dangerousness prong of *Simmons* had not been met, and denied the request to charge. JA 243-48, 249, 252-54.

After the trial court denied the defense's request for the verbatim charge from subsection 16-3-20(A), Petitioner asked for a charge that life imprisonment was to be understood in its plain and ordinary meaning. Petitioner also requested a charge that the state had stipulated future dangerousness was not an issue in the sentencing proceeding. The court denied the latter request. JA 249-51.

The solicitor began his closing argument by again stating that the death penalty "fit the crime" in this case. JA 256. As he

recounted the various aggravating factors, such as kidnapping, burglary, and larceny or robbery with a deadly weapon, he noted that Petitioner had been "carrying out his plan". JA 257-58. When discussing the aggravating factor of physical torture, the solicitor reminded the jury that Petitioner's attack "was prolonged, unmerciful, intentional inflection of severe pain and abuse to another person". JA 259. The solicitor stated that the victim was fighting for her life, but that Petitioner was'"carrying out his plan". The solicitor concluded his discussion of physical torture:

> He was a master murderer. And not instantaneous, but prolonged, unmerciful, severe pain and abuse. All we've got to do is prove one [aggravating factor].

JA 259.

After addressing the aggravators, the solicitor responded to the mitigating factors of Petitioner's youth and lack of a violent criminal record by arguing that a person such as Petitioner "that commits an uncharacteristic and an unpredictable crime is more frightening than a serial killer" or a "career criminal", because, in an obvious reference to the fact that the victim knew Petitioner, "you kind of trust them a little bit". JA 260.

The solicitor then referred to Petitioner's plan to attack a female guard at the county jail, but reminded the jury that even though Petitioner did not have a prior violent record, "isn't [the murder of Shealy] bad enough on its own?". JA 261.

The solicitor next argued that Petitioner did not deserve mercy because he had shown none, by reminding the jury of the extreme brutality of the crime, as well as its premeditation, as evidenced by Petitioner's equipping himself with tape, a dagger,

and latex gloves. JA 262-67. As the solicitor described the crime's circumstances, he stated: "Keep on plunging, keep on slicing, hacking, bloody Billy, the butcher of Batesburg". The trial court sustained defense counsel's objection that the reference was inflammatory, but the solicitor continued, referring to Petitioner as "Billy the Kid", who committed a "man-sized crime" and deserved a "man-sized" punishment. The solicitor again called Petitioner the "butcher of Batesburg", but the trial court sustained the defense objection and ordered the comment stricken. JA 267-68.

Continuing his argument against mercy, the solicitor noted that Petitioner had no mental illness or retardation, and was intelligent and quick-witted. The solicitor then stated: "Doesn't that make somebody a little more dangerous –". Defense counsel objected that the solicitor was arguing future dangerousness, but the solicitor continued his thought before the court ruled:

> – for this lady, this crime on January the 5th, doesn't that make him more unpredictable for Shirley Shealy. When you let your guard down and they stab you in the back.

There was no further objection. Referring to the victim's friendship with Petitioner's family, the solicitor concluded that Petitioner "made his own family victims", and noted that "we are talking about character and fitness". JA 269.

The solicitor then began discounting Petitioner's adaptability evidence, and reviewed the evidence of Petitioner's plans for escape. The defense objected that the solicitor was arguing future dangerousness, but the court overruled the objection. After the solicitor noted that as part of his aborted escape plan Petitioner called the female guard over to his cell while holding a shank behind his back, the solicitor stated:

> That's just shanks will be shanks. And murderers will be murderers. And he is the cold-blooded one right over there.

JA 270-72.

The solicitor next reviewed the victim impact evidence. In his closing thoughts, the solicitor again echoed themes of retribution, stating, "but if this case is not for the death penalty, if it's not right here, it's not right". JA 273-76.

During their closing arguments, defense counsel repeatedly stressed that Petitioner would be in prison for the rest of his life, even referring to such a sentence as a "slow death" as compared to the death penalty, which counsel characterized as "quick and painless". JA 276-80. Defense counsel concluded his argument by saying:

> I do believe the right thing in this particular case and the appropriate sentence is life in prison, a long time for somebody that's twenty-years old. A long, slow death. He'll never see the light of daylight again.

R. 2060.[1]

The judge defined life imprisonment by stating it should be understood in its plain and ordinary meaning. JA 289. The trial judge further instructed the jury that evidence of Petitioner's "prior crimes and misconduct" went only to the defendant's "character" and "characteristics", and could not be considered as proof of any statutory aggravating circumstances. JA 284. Later,

[1] This passage was designated by Respondent for inclusion in the Joint Appendix; however, it was omitted.

the trial court stated that the listed statutory aggravators (kidnapping, burglary, robbery or larceny with a deadly weapon, and physical torture) were the *only* aggravating factors the jury could consider. JA 292.

After the charge, defense counsel renewed her request for a charge from subsection 16-3-20(A), or, in the alternative, for a charge that the state had stipulated future dangerousness was not an issue. JA 304.

D. The South Carolina Supreme Court's resolution of the federal issue on direct appeal

On appeal, the state supreme court addressed Petitioner's claim that *Simmons* required a parole ineligibility charge because the prosecution raised future dangerousness with argument, and by presentation of "evidence about escape attempts, possession of a shank, and [Petitioner's] behavior in jail". *State v. Kelly*, 540 S.E.2d 851, 856 (S.C. 2001).

The court first held that the state's evidence did not raise future dangerousness. The court noted that evidence of misconduct in prison did not implicate the future dangerousness "contemplated by *Simmons*", which is danger if the defendant is released from prison. The court held that parole ineligibility did nothing to rebut the state's evidence that Petitioner was an escape risk. Finally, the court concluded that the state's evidence was directed towards showing Petitioner would not adapt to prison, and noted Petitioner had full opportunity to rebut this evidence with cross-examination and his expert witnesses on adaptability. *Kelly*, 540 S.E.2d at 857.

Next, the state supreme court held that the prosecution did not argue future dangerousness. The court observed that the solicitor "consciously avoided any implication of future

dangerousness", and never suggested that the jury "should impose the death penalty because [Petitioner] would be a future danger to the general public". *Kelly*, 540 S.E.2d at 857.

The *Kelly* court also went on to hold in the alternative that the *Simmons* rule was not triggered because at the time of the judge's charge a thirty year definite term sentence was a possibility, and life without parole was not the only available alternative sentence to death. *Kelly*, 540 S.E.2d at 857-58. This alternative rationale has since been overruled by this Court's decision in *Shafer v. South Carolina*, 121 S.Ct. 1263 (2001).

Finally, the state supreme court rejected Petitioner's claim that the trial court should have instructed the jury with eight-sentence request to charge that there was "no evidence" the defendant would be dangerous in the future, and that any consideration of future dangerousness was not a proper factor to consider. The state supreme court ruled the charge was properly denied, because (1) the prosecution was entitled to argue future dangerousness within prison without triggering the need for a *Simmons* instruction on parole ineligibility, and (2) "the charge as written is extremely confusing". *Kelly*, 540 S.E.2d at 859.

SUMMARY OF ARGUMENT

Since this Court decided *Simmons v. South Carolina*, 512 U.S. 154 (1994), South Carolina courts as well as the courts of other jurisdictions have held that its due process rationale did not apply unless the prosecution affirmatively raised future dangerousness as a basis for the death penalty. The South Carolina Supreme Court so held in Petitioner's case.

Petitioner now seeks to expand on years of interpretation and application of *Simmons*, initially by arguing that future dangerousness to society can be raised by mere presentation of the

defendant's other bad acts as well as the circumstances of the capital offense itself. Such a holding would make the future dangerousness to society requirement virtually meaningless and would conflict with the rationale of *Simmons* itself: a due process right of rebuttal.

Although evidence of prior criminal record, bad acts, premeditation, and grisly circumstances of the capital crime itself has been held on appeal to support a finding of future dangerousness to society in jurisdictions that expressly submit that issue to the jury, it does not follow that such evidence automatically flags the issue in the minds of South Carolina jurors, to whom the issue is not mentioned at all. It is the express submission of and argument of the issue before the jury that makes such "routine" capital trial evidence raise future dangerousness to society. Indeed, some states hold future dangerousness is not an appropriate matter for consideration; yet they still allow evidence of prior criminal record or circumstances of the crime without concern that the jury is improperly focused on the issue.

Thus, in order for a due process right of rebuttal to arise, the prosecution must affirmatively raise to the jury that the death of the defendant is the only way to ensure that society is protected. Future dangerousness to society is in issue if it is an expressly submitted aggravator, if the prosecution expressly argues it as a basis for death, or if the prosecution presents evidence for which there is no other inference but future dangerousness to society.

Mere argument and evidence of a defendant's other bad acts or the circumstances of his crime do not raise future dangerousness to society if the prosecution only uses them in the retributive context, that the defendant is undeserving of mercy because of what he has done. Retribution is a concept legally and

logically distinct from the concept of specific deterrence. Moreover, the state is entitled to introduce evidence of the defendant's other bad acts to prevent an overly generous view when the defense presents its inevitable Eighth Amendment mitigation case on the defendant's character and record.

Moreover, *Simmons* is only triggered by argument or evidence that the defendant poses a future danger to free society, not argument or evidence that he poses a danger to other inmates or prison staff. Parole ineligibility does nothing to rebut claims that the defendant will be dangerous in prison or will be an escape threat. Unless the point is expressly made, the jury will not necessarily assume future dangerousness to society from evidence or argument about dangerousness in prison; indeed, the evidence in Petitioner's case was that prison was causing him to misbehave. Further, evidence of and argument about the defendant's misconduct in prison does not trigger *Simmons* if it is limited to addressing the defense's adaptability case.

Unlike the prosecutor in *Simmons*, who characterized a death sentence as a "response of society" to a "threat", and an act of "self-defense", the prosecutor in this case did not assert that Petitioner's death was the only way to protect society. When the prosecutor's argument is viewed as a whole, it is clear that the passages of which Petitioner complains were part of a retributive argument that the defendant was undeserving of mercy for the acts that he had committed. The passages also responded to the mitigating factors of age and lack of a prior criminal record.

Even if the prosecution's case did raise future dangerousness, *Simmons* was not violated. Unlike *Simmons*, the jury in Petitioner's case did not inquire about parole eligibility, and the judge did not charge that parole was not for the jurors' consideration. Also, defense counsel repeatedly argued to the jury that Petitioner would "never see the light of daylight again"

if sentenced to life, which satisfied the mandate in *Simmons*. Since there is nothing to indicate the jurors were concerned with or confused about the possibility of early release, there is no reason to think that the jurors did not accept that the "plain meaning" of life imprisonment is imprisonment for life.

ARGUMENT

I. In order for the rule in *Simmons* to be triggered, future dangerousness to society must be expressly presented to the jury; parole ineligibility does not to rebut purely retributive arguments based on the circumstances of the capital crime or the defendant's other misconduct, nor does it rebut arguments or evidence that the defendant will be dangerous in prison.

In *Simmons v. South Carolina*, this Court held that due process prevented the state from creating "a false dilemma by advancing generalized arguments regarding the defendant's future dangerousness while, at the same time, preventing the jury from learning that the defendant will never be released on parole." 512 U.S. 154, 171 (1994). However, this Court has repeatedly said that, subject to the due process rule of *Simmons*, states retain "some discretion in determining the extent to which a sentencing jury should be advised of probable future custody and parole status in a future dangerousness case". *Ramdass v. Angelone*, 120 S.Ct. 2113, 2119 & 2121 (2000) (citing *O'Dell v. Netherland*, 521 U.S. 151 (1997)). *See also Simmons*, 512 U.S. at 176 (O'Connor, J., concurring) (citing *California v. Ramos*, 463 U.S. 992, 1013 n. 30 (1983)).

Since *Simmons v. South Carolina* was decided, the South Carolina Supreme Court has held that life without parole instructions were not required where the prosecution did not expressly raise future dangerousness to society. *See State v.*

Williams, 468 S.E.2d 626 (S.C. 1996); *State v. Young*, 459 S.E.2d 84 (S.C. 1995); *State v. Southerland*, 447 S.E.2d 862 (S.C. 1994).[2] Petitioner now challenges a similar holding in his case. Initially, however, he seeks to significantly broaden what will be deemed to have raised to future dangerousness to society, by primarily focusing on two points: (1) that introduction of and argument about the defendant's prior record and other bad acts necessarily raises future dangerousness to society, and (2) that introduction of and argument about the circumstances of the capital crime itself can raise future dangerousness to society.

A. Petitioner posits a test without standards and suggests an expansion of *Simmons*, with his argument that future dangerousness to society is raised merely by evidence and argument of prior bad acts or circumstances of the capital crime.

Evidently in reaction to Respondent's Brief in Opposition, Petitioner proposes in his brief the following test for determining whether future dangerousness to society is "in issue" for purposes of *Simmons*:

> (1) the prosecution presents evidence from which a jury could find the defendant poses a future danger,
>
> (2) the prosecutor's argument states or implies that the defendant poses a future danger,

[2] The South Carolina Supreme Court has also reversed cases for failure to give the instruction where it found the prosecution *did* raise future dangerousness to society. *See State v. Rogers*, 466 S.E.2d 360 (S.C. 1996) (prosecution argued "in our midst", and argued future dangerousness both inside prison and outside in society); *State v. Tucker*, 464 S.E.2d 105 (S.C. 1995).

> (3) the judge instructs the jury to consider the issue of future dangerousness.

Brief for Petitioner 28. Petitioner asserts his test represents no change to the *Simmons* rule.

However, Petitioner posits a test without standards, which would make this Court's opinions and seven years of Simmons's subsequent interpretation by other courts to be nothing but wasted breath and pointless endeavors. On one hand, Petitioner seems to provide a standard by requiring the prosecution "to present evidence from which the jury could find the defendant poses a future danger", on the other hand, he elsewhere asserts in his brief that "the facts of the capital murder *alone* may support a finding of dangerousness". Brief for Petitioner 24 (citing *Bell v. State*, 938 S.W.2d 35 (Tex. Crim. App. 1996)). He points to the "grisly [and] premeditated" nature of this crime as such a case. Brief of Petitioner 25. However, in South Carolina almost any death-penalty eligible crime would be far within the realm of one of the worst possible crimes; thus, under Petitioner's view, the simple presentation of the guilt phase case almost always would result in future dangerousness being "in issue".

If, as Petitioner suggests, by its facts alone almost every capital case necessarily involves future dangerousness to society, then *Simmons* would simply apply to every capital case where the only alternative sentence to death was life without parole. That has never been the law, and therefore Petitioner clearly suggests an expansion of *Simmons*. To the contrary, the opinions of this Court, whether in plurality, concurrence or in dissent, are generally clear that there is a meaningful future dangerousness to society requirement for triggering *Simmons*'s due process right of rebuttal. *See Ramdass v. Angelone*, 120 S.Ct. 2113, 2117 (2000) (plurality opinion) (noting that in *Simmons*, future dangerousness was in issue, so the plurality there concluded due process required

a charge on parole ineligibility); 120 S.Ct. at 2126 (O'Connor, J., concurring) (noting that the state must seek "to demonstrate that the defendant poses a future danger to society"); 120 S.Ct. at 2135 (Stevens, J., dissenting) (stating: "If the State argues that the defendant will be a future danger to society, it quite plainly rebuts that argument to point out that the defendant . . . will never be part of society again."). *See also Simmons*, 512 U.S. at 163 ("In assessing future dangerousness, the actual duration of the defendant's prison sentence is indisputably relevant."); 512 U.S. at 168-69 ("If the State rests its case for imposing the death penalty at least in part on the premise that the defendant will be dangerous in the future . . ."); 512 U.S. at 171 (Souter, J., concurring, joined by Stevens, J.) ("at least when future dangerousness is in issue . . . the defendant has a due process right" to a life without parole charge) 512 U.S. at 174 (Ginsburg, J., concurring) (noting that due process requires parole information "[w]hen the prosecution urges a defendant's future dangerousness as cause for a death sentence"); 512 U.S. at 176-77 (O'Connor, concurring) (noting that if prosecution does not "argue" future dangerousness, the state may decide parole is not a proper issue).[3]

Indeed, many decisions from other jurisdictions addressing the applicability of *Simmons* have identified the

[3] In his *Simmons* dissent Justice Scalia stated that Justice Blackmun's opinion "appears to go even further, requiring the admission of parole ineligibility even when the prosecutor does not argue future dangerousness". 512 U.S. at 183. While this may be true, it is clear that the other opinions set forth an express future dangerousness requirement for the due process rationale.

prosecutor's express argument of future dangerousness as a necessary trigger for applicability of the rule.[4]

Admittedly, there have been some older Texas cases that have found the prosecution's evidence insufficient to support the jury's finding of future dangerousness to society, which might suggest Petitioner's broad test does create an appropriate standard. If anything, however, these cases highlight what is typically present when the state expressly seeks to put on a future

[4] *See, e.g. People v. Musselwhite*, 954 P.2d 475, 509 (Ca. 1998) (although later assuming for argument that evidence could raise future dangerousness, distinguishing *Simmons* because the "prosecution did not argue the defendant's future dangerousness warranted the death penalty"); *People v. Coleman*, 660 N.E.2d 919, 941-42 (Ill. 1996) (distinguishing *Simmons* because "the state did not rely on future dangerousness in its argument to the jury as a reason for imposition" of death); *State v. Comeaux*, No. 93-2729, 699 So.2d 16 (La. 1997) (unpublished appendix to published opinion and available on WESTLAW) (distinguishing *Simmons* because the prosecutor did not argue "future dangers"); *State v. Feaster*, 716 A.2d 395, 440-41 (N.J. 1998) (distinguishing *Simmons* in part because "the prosecutor here did not specifically argue the future dangerousness"); *State v. Warren*, 499 S.E.2d 431, 455 (N.C. 1998) (distinguishing *Simmons*, and ruling that prosecutor did not argue future dangerousness, but instead argued "the evidence that defendant had committed three murders to show that defendant was a serial killer deserving of the death penalty"); *State v. Richmond*, 495 S.E.2d 677 (N.C. 1998) (argument of future dangerousness in prison does not trigger *Simmons*, and prosecutor was arguing defendant's past crimes when he stated that the people who get close to the defendant die); *State v. Mitts*, 690 N.E.2d 522, 529 (Ohio 1998) (in addressing claim where jury inquired whether life sentences would be consecutive or concurrent, distinguishing *Simmons* in part because the prosecutor did not argue future dangerousness); *Commonwealth v. Bridges*, 757 A.2d 859, 881 (Pa. 2000) (rejecting request for "*Simmons* instruction" on the basis that "the prosecutor did not argue Appellant's future dangerousness"); *Rhines v. Weber*, 608 N.W.2d 303, 311 (S.D. 2000) (distinguishing *Simmons* because prosecution did not expressly raise future dangerousness, with references to a "greedy killing", defendant's knowledge of how to use a knife, and "depravity of the mind" aggravator); *State v. Bush*, 942 S.W.2d 489, 503 n.7 (Tenn. 1997) (in dicta noting that case was unlike *Simmons* in that trial court did not allow prosecutor to argue future dangerousness).

dangerousness case. *See, e.g. Keeton v. State*, 724 S.W.2d 58 (Tex. Crim. App. 1987) (evidence did not support jury's finding of future dangerousness where there was no psychiatric evidence, no character evidence, and no evidence of prior violent acts); *Roney v. State*, 632 S.W.2d 598 (Tex. Crim. App. 1982) (evidence did not support future dangerousness where no psychiatric or prior record evidence was offered and circumstances of crime were not calculated and cold blooded); *Garcia v. State*, 626 S.W.2d 46 (Tex. Crim. App. 1982) (evidence did not support future dangerousness where crime was spontaneous, no prior record was introduced, and psychologist who testified lacked adequate foundation); *Wallace v. State*, 618 S.W.2d 67 (Tex. Crim. App. 1981) (where defendant was accomplice, evidence did not support future dangerousness where there was no evidence of prior convictions, prior acts of violence, or psychiatric testimony). If this is the standard, then future dangerousness to society would not be in issue *only* in those cases where there is no evidence of prior record and no evidence of premeditation or planning. Such a small subset of cases, for which it would be unlikely that a prosecutor in South Carolina would even seek the death penalty, would make the future dangerousness requirement, and this Court's discussion of it in *Simmons*, whether in plurality, concurrence, or dissent, to be much ado about nothing.

Moreover, cases from states that expressly submit a future dangerousness aggravator to the jury do not provide an accurate gauge of what evidence necessarily raises future dangerousness to society in the minds of South Carolina jurors. In Texas, the jury must expressly find future dangerousness to society as a necessary prerequisite to every death sentence. Tex. Crim. Proc. Code Ann. § 37.071(b), (g) (West 2001) (there must be "a probability that the defendant would commit criminal acts of violence that would constitute a continuing threat to society"). When making the determination of whether the defendant poses

a "continuing threat to society", a Texas jury is permitted to consider, *inter alia*:

> (1) the circumstances of the capital offense;
>
> (2) the calculated nature of the defendant's acts;
>
> (3) the forethought and deliberateness exhibited by the crime's execution;
>
> (4) the existence of a prior criminal record, and the severity of prior crimes;
>
> (5) the defendant's age and personal circumstances at the time of the offense;
>
> (6) whether the defendant was acting under duress or the domination of another;
>
> (7) psychiatric evidence, and
>
> (8) character evidence.

Keeton, 724 S.W.2d at 61. The Texas appellate courts view the evidence *in the light most favorable to the verdict* when determining whether a rational trier of fact could have found future dangerousness to society. *Keeton*, 724 S.W.2d at 61.

Of course, determining whether a jury, under any view of the evidence, could have rationally found the future dangerousness aggravating factor that was expressly submitted to it, is a far cry from asserting, as Petitioner does here, that a jury *necessarily* would have focused on future dangerousness to society from similar evidence even though it was not expressly asked to do so. When one examines the *Keeton* factors as to what

in Texas could permissibly support a finding of future dangerousness, it is hard to conceive of many capital cases which would not at least have some evidence of one of those factors. Indeed, the number of reported cases in Texas that have not found sufficient evidence of future dangerousness are nearly imperceptible compared to the overwhelming amount cases that *have* found at least some sufficient evidence to support a jury's finding of future dangerousness. *See* cases annotated at note 45 of Tex. Crim. Proc. Code Ann. § 37.071 (West 2001).[5] It is the *express submission* and argument of the issue before the jury that makes "routine" types of sentencing phase evidence, such as prior record and circumstances of the crime, necessarily raise future dangerousness to society in the minds of the jury.

Therefore, what minimal evidence suffices under a highly deferential standard of review to support a jury verdict of future

---

[5] Virginia requires the jury to find either vileness or a "probability" that the defendant would be a future danger to society, based on either his prior conduct or the circumstances surrounding the capital offense. Va. Code Ann. § 19.2-264.4 (Michie 2000). Respondent has been unable to locate any cases that have found insufficient evidence to support a finding of future dangerousness; indeed, the standard seems to be even easier to meet than in Texas. *See* cases annotated at section II(B) of Va. Code Ann. § 19.2-264.2 (Michie 2000); *Lovitt v. Commonwealth*, 537 S.E.2d 866 (Va. 2000) (murder of employee to facilitate robbery and prevent identification was "strong evidence" of future dangerousness). A very low standard requiring only some evidence of a criminal past or of a "callous crime" is apparent from the cases of other states with express future dangerousness aggravators. *See* Cases annotated at note 6 of Okla. Stat. Ann. tit. 21, § 701.12 (West 2000); *Turrentine v. State*, 965 P.2d 955 (Okla. Crim. App. 1998) (to support aggravator, evidence must show participation in unrelated criminal acts, "callous" nature of the capital crime, or prior conviction for violence); *Marshall v. State*, 963 P.2d 1 (Okla. Crim. App. 1998) (holding victim underwater was sufficient to prove aggravator); Or. Rev. Stat. § 163.150 (1999); *State v. Tucker*, 845 P.2d 904 (Or. 1993) (future dangerousness aggravator authorizes jury to consider prior criminal conduct that is "broad in scope").

dangerousness is not the standard from determining what evidence would necessarily raise a "future dangerousness to society" issue in the minds of South Carolina jurors. If one were to apply such an "any evidence" standard, then the future dangerousness to society requirement in *Simmons* would be virtually illusory and meaningless. The focus should be on, as noted in *Simmons*, whether the prosecution expressly raised the issue to the jury.

B. For *Simmons*'s due process right of rebuttal to be triggered, future dangerousness to society must be expressly submitted to the jury through either prosecution argument, evidence, or the judge's charge.

Some sort of express submission of the issue to the jury is necessary because of the rationale of *Simmons*: a due process right of rebuttal. The idea is that "when the State seeks to show future dangerousness, . . . the fact that [the defendant] will never be released from prison will often be the only way that a violent criminal can successfully rebut the State's case". *Simmons*, 512 U.S. at 177 (O'Connor, J., concurring). *See also Simmons*, 512 U.S. at 164 (discussing that in *Skipper v. South Carolina*, 476 U.S. 1 (1986) due process required "admission of the defendant's relevant evidence in rebuttal"); 512 U.S. at 164-65 (discussing that in *Gardner v. Florida*, 430 U.S. 349 (1977), defendant was not allowed to rebut a presentence report used against him but not made available); 512 U.S. at 174 (Ginsburg, J., concurring) (if prosecution argues future dangerousness, defendant "must be afforded an opportunity to rebut the argument"). Obviously, in order to have a right to rebut a point, the other party must have first made it. It is *the use to which the prosecution puts the evidence* which triggers the rebuttal rule in *Simmons*. Otherwise, there is nothing to "deny or explain". *Gardner*, 430 U.S. at 362.

Respondent therefore identifies a rule with standards, and one which is consistent with *Simmons* as it presently exists as well as its subsequent interpretation by many lower courts. Future dangerousness is in issue when:

> (1) the statutory scheme requires the jury to make a finding of future dangerousness to society; or
>
> (2) the prosecutor expressly argues future dangerousness to society as a basis for death; or
>
> (3) the prosecution presents evidence for which there is no other inference other than future dangerousness to society.

Obviously, if the judge's charge requires the jury to decide whether the defendant is a continuing danger to society, then *Simmons* is triggered. South Carolina does not have an express statutory future dangerousness aggravator. S.C. Code Ann. § 16-3-20 (Supp. 2000). The issue in the present case lies with argument and evidence.

Express argument of future dangerousness to society does not simply result from references to the defendant's other bad acts, or to the gruesome circumstances of the capital crime. There is a discernable difference in both inference and effect between merely arguing, "this defendant deserves death because of all the bad things he has done in his life", or, "this defendant deserves death because of how horrible this particular crime was", as opposed to expressly raising the fear of future dangerousness to society by saying, "You must sentence this defendant to death to protect society, or he will kill again in the future". The former

arguments are only retributive; the latter is incapacitative. The two concepts are logically and legally distinct.[6]

Similarly, qualifying future dangerousness evidence would also be express, such as the defendant's statements that he will kill or harm others in society again, or expert mental health evidence that a defendant will likely be dangerous in the future. As with argument, there is a difference between merely introducing a defendant's other bad conduct or the circumstances of the crime to support retribution, and introducing evidence for which there is *no other possible inference* but future dangerousness to society. *Cf. generally Wisehart v. State*, 693 N.E.2d 23, 60 (Ind. 1998) (in Indiana, "a death sentence is imposed for what the defendant has done, not what he or she might do").

---

[6] Arguing future dangerousness to society raises specific deterrence of the individual offender. *See Coleman v. Brown*, 802 F.2d 1227 (10th Cir. 1986); *Brooks v. Kemp*, 762 F.2d 1383 (11th Cir. 1985); *State v. Rose*, 451 S.E.2d 211 (N.C. 1994). *See also Gregg v. Georgia*, 428 U.S. 153, 183 & 183 n. 28 (1976) (stating, "[t]he death penalty is said to serve two principal social purposes: retribution and [general] deterrence", but noting that "another purpose that has been discussed is the incapacitation of dangerous criminals").

Retribution, on the other hand, involves the "belief that certain crimes are themselves so grievous and an affront to humanity that the only adequate response may be the penalty of death". *Gregg*, 428 U.S. at 184. The two concepts are obviously distinct. *See generally Harmelin v. Michigan*, 501 U.S. 957, 2704 (1991) (Kennedy, J., concurring) (noting that criminal systems have accorded varying weight at different times to various penological goals of retribution, deterrence, incapacitation, and rehabilitation); *State v. Warren*, 499 S.E.2d 431, 455 (N.C. 1998) (distinguishing *Simmons*, and ruling that prosecutor did not argue future dangerousness, but instead argued "the evidence that defendant had committed three murders to show that defendant was a serial killer deserving of the death penalty")

Indeed, the *Simmons* plurality implied that character, prior criminal history, and background are not the same thing as future dangerousness. 512 U.S. at 164 ("The defendant's character, prior criminal history, mental capacity, background, and age are just a few of the many factors, *in addition to future dangerousness*, that a jury may consider in fixing punishment." (Emphasis added)). *See also State v. Young*, 459 S.E.2d 84, 87 n.4 (S.C. 1994). Of course, the Eighth Amendment mandates that a defendant be allowed to present any evidence of his character or record that the jury may find is a basis for a sentence less than death. *Eddings v. Oklahoma*, 455 U.S. 104, 110 (1982). Typically, this mitigation evidence consists of reciting all the wonderful things the defendant has done in his life. *Cf. generally Payne v. Tennessee*, 501 U.S. 808, 825 (1991) (quoting: "a parade of witnesses may praise the background, character and good deeds of Defendant without limitation as to relevancy"). The state similarly may present evidence of bad things the defendant has done, to prevent the jury from having a false perception of what kind of person the defendant has actually been. Such inferences do not raise future dangerousness.

A number of other jurisdictions have also noted the distinction between pointing out a defendant's character and other bad acts, and raising future dangerousness. *See, e.g. Allen v. State*, 662 So.2d 323, 331 (Fla. 1995) (prosecutor did not argue future dangerousness with reference to prior escape; argument went to "committed by person under sentence of confinement" aggravator); *Parker v. State*, 456 So.2d 436 (Fla. 1984) (prosecutor's reference to defendant's prior life with parole sentences did not raise future dangerousness but merely argued aggravator of prior violent record); *State v. Bey*, 736 A.2d 469 (N.J. 1999) ("prior murder" aggravator did not raise future dangerousness); *State v. Warren*, 499 S.E.2d 431, 455 (N.C. 1998) (distinguishing *Simmons*, and ruling that prosecutor did not argue future dangerousness, but instead argued "the evidence that

defendant had committed three murders to show that defendant was a serial killer deserving of the death penalty"); *State v. Bey*, 709 N.E.2d 484 (Ohio 1999) (prosecutor did not raise future dangerousness by reviewing evidence of defendant's character, background, and history in response to adaptability evidence); *Commonwealth v. May*, 710 A.2d 44, 47 (Pa. 1998) (evidence of prior criminal conduct does not necessarily raise future dangerousness); *Rhines v. Weber*, 608 N.W.2d 303, 311 (S.D. 2000) (distinguishing *Simmons* because prosecution did not expressly raise future dangerousness, with references to a "greedy killing", defendant's knowledge of how to use a knife, and "depravity of the mind" aggravator). Moreover, there are many types of evidence known to law which are admitted for one purpose but not another. *See, e.g.* Fed. R. Evid. 404(b) (other bad acts); Fed. R. Evid. 803(3) (state of mind).[7]

Respondent certainly concedes that other jurisdictions as well as this Court have noted that evidence of other criminal acts can be indicative of future dangerousness. Again, however, it is the use to which the prosecution puts the evidence which triggers a due process right to rebut. If the prosecution argues that the defendant's record indicates he will always be a danger to society unless he is put to death, then the evidence *plus the argument* clearly triggers *Simmons*'s right to rebut. If, however, the prosecution only argues that the defendant is undeserving of mercy for the severity and quantity of his criminal acts, then future dangerousness has not been raised. Unlike the "elusive"

---

[7] Petitioner may note in reply that often such evidence is accompanied by a limiting instruction, and the trial court in this case rejected the defense request that the jury be charged that there was "no evidence" the defendant would be dangerous in the future". The state supreme court ruled the charge was properly denied, holding (1) that the prosecution was entitled to argue future dangerousness within prison without triggering the need for a *Simmons* instruction on parole ineligibility, *see* section I(C), *infra*, and (2) that "the charge as written is extremely confusing". *Kelly*, 540 S.E.2d at 859.

distinction between future adaptability to prison and past behavior in prison rejected by *Skipper* in an Eighth Amendment context, 476 U.S. at 6, specific deterrence is clearly distinct both logically or legally from retribution.

C. *Simmons* is not triggered by prosecution argument as to a defendant's future dangerousness to other inmates and prison staff, because information about the unavailability of parole does nothing to rebut such a claim.

The South Carolina Supreme Court ruled that evidence of and argument about Petitioner's misconduct while in pretrial detention did not trigger *Simmons*, because the unavailability of parole does nothing to rebut evidence showing Petitioner's future dangerousness *while in prison*. *Kelly*, 540 S.E.2d at 857. Petitioner contends that there is no basis in law or logic for the "inside prison/outside society" distinction. He is incorrect.

As noted before, the *Simmons* rule is based in the due process right of a capital defendant to rebut the state's presentation of future dangerousness as a basis for death. 512 U.S. at 164-65 (discussing *Skipper v. South Carolina*, 476 U.S. 1 (1986), and *Gardner v. Florida*, 430 U.S. 349 (1977)). The rationale is obvious for distinguishing between argument about future dangerousness to the public, which would trigger *Simmons*, and argument about dangerousness while inside prison, which would not: whether or not the defendant may be released from prison on parole is irrelevant if the prosecutor is only arguing that the defendant will be dangerous to other inmates and prison staff. Since life without parole does absolutely nothing to respond to dangerousness inside prison, there is no corresponding due process right of rebuttal.

Despite its obvious logic, this distinction finds support in *Simmons* itself as well as the decisions of other jurisdictions. *See Simmons*, 512 U.S. at 165 n.5 ("Of course, the fact that a defendant is parole ineligible does not prevent the state from arguing that the defendant poses a future danger. The state is free to argue that the defendant will pose a danger to . . . inmates or prison staff.") (plurality); 512 U.S. at 177 ("Of course, in such cases the prosecution is free to argue that the defendant would be dangerous in prison.") (concurrence).

Petitioner contends that these passages only mean that the prosecution may continue to argue future dangerousness inside prison even though a parole ineligibility charge is given. Whatever merit Petitioner's interpretation may have from the way the above passages were phrased in *Simmons*, this does not change the obvious logic that ineligibility for parole does nothing to rebut future dangerousness to other inmates and prison staff. If, as noted by both Justices Blackmun and O'Connor, an ineligibility for parole charge does nothing to preclude the relevance of prosecution arguments that the defendant would be dangerous in prison, then the opposite is also true, that prosecution arguments about the defendant's future dangerousness in prison do nothing to make relevant the defendant's ineligibility for parole. *Cf. Ramdass v. Angelone*, 120 S.Ct. 2113, 2122 (2000) (parole ineligibility charge can be overcome if jury concludes defendant may pose risk to society in prison).

In any event, the importance that the prosecution argued future dangerousness to society is readily apparent from the plurality and concurring opinions, even though Justice Scalia's dissent states Justice Blackmun's opinion may "appear" not to require future dangerousness argument to trigger *Simmons*. First, both the plurality and concurrence focused on the prosecution's argument that the jury must decide "what to do with [Simmons]

now that he is in our midst", and that a death sentence would be "a [self-defense] response of society to someone who is a threat". 512 U.S. at 157. Both the plurality and the concurring opinions made much of the testimony in *Simmons* that the defendant was only dangerous to elderly women and thus would not pose a threat to the men in prison. 512 U.S. at 157-58, 176.

Second, the plurality opinion defined future dangerousness argument as "urg[ing] the jury to sentence the defendant to death so that he will not be a danger to the public *if released from prison*". *Simmons*, 512 U.S. at 163 (emphasis added). Indeed, the *Simmons* plurality noted its due process concern was that "there may be no greater assurance of a defendant's future nondangerousness *to the public* than the fact that he never will be released on parole". Id. at 164 (emphasis added). Justice Blackmun noted that the state raised future dangerousness "generally", but then "thwarted" the defendant's efforts to show that his parole ineligibility prevented him from "pos[ing] a future danger *to society*". *Simmons*, 512 U.S. at 165. Similarly, Justice O'Connor stated that due process required an ineligibility charge if life without parole was the only alternative sentence and "the prosecution argues that the defendant will pose a threat to society in the future". *Simmons*, 512 U.S. at 177. Finally, the significance to this Court's decision that the prosecutor in *Simmons* raised future dangerousness to society rather than merely inside prison is highlighted by the discussion in Justice Scalia's dissent. 512 U.S. at 180-82 (arguing that the majority was incorrect in concluding that "future dangerousness outside of prison" was raised by the prosecutor in *Simmons*).[8]

---

[8] Indeed, at the trial level in *Simmons* itself, the defense, whose lawyers included Petitioner's present counsel, asked that since the judge had declined to charge parole ineligibility, the prosecutor should be precluded from arguing "the defendant will pose a risk of future violent behavior to society" unless sentenced to death. *Simmons* JA 55.

Other jurisdictions have also applied or recognized the distinction between inside prison and outside society future dangerousness evidence or argument. *United States v. Flores*, 63 F.3d 1342, 1368 (5th Cir. 1995) (focus on danger in prison makes case "materially different" from *Simmons*); *Allridge v. Scott*, 41 F.3d 213, 221-22 n.12 (5th Cir. 1994) (parole ineligibility irrelevant if prosecution is arguing defendant is dangerous to both society and prison); *State v. Richmond*, 495 S.E.2d 677 (N.C. 1998) (rule in *Simmons* is not triggered by arguments of dangerousness in prison; that dangerousness exists apart from eligibility for parole); *Collier v. State*, 959 S.W.2d 621, 623 (Tex. Crim. App. 1997) (en banc) (since jury considers both danger to free society as well as prison in "continuing threat" aggravator, length of incarceration does not reduce dangerousness).

Petitioner responds to the logic of this distinction by contending evidence that Petitioner was dangerous inside the highly restrictive environment of prison is *necessarily* evidence that Petitioner would be more dangerous in the free climate of society, regardless of how the prosecution argues the evidence. Surely, prison is a more restrictive environment than society; however, it is common sense that a prison for felons is a far more dangerous and violent place than the Petitioner's small hometown of Batesburg, South Carolina, or most any other neighborhood in the country. It cannot simply be assumed that people necessarily behave *better* in a maximum security lockup than they would in free society. The South Carolina Supreme Court was thus correct in concluding that such evidence went to show Petitioner was not adaptable to prison, and not to prove his future dangerousness to the general public. *See Kelly*, 540 S.E.2d at 857.

Indeed, Petitioner's contention in this regard *contradicts* the very evidence he presented in mitigation in this case. The defense presented expert evidence that Petitioner's possession of a shank, talk of escape, and drawing of a decapitated chicken on

his cup was just the typical "puffing" often done by younger, smaller-built inmates. JA 178-93. During the defense's cross-examination of the state's penalty phase witnesses, the *defense* brought out that inmates have to stand up for themselves in prison by fighting, that inmates often have shanks to protect themselves, that prison is a "dog eat dog" world, and that an inmate must always "watch his back". Moreover, the *defense* established through cross-examination that inmates are going to constantly test each other, and if an inmate does not show he is tough, he will end up "becoming someone's boyfriend" or cleaning another inmate's room. JA 136-38, 142-44, 149-51; R. 1766-67. Thus, the mitigation evidence was that prison was *causing* Petitioner to behave more violently than he normally would, not that its more restrictive environment caused him to behave. Prison and free society are vastly different and the link is not so readily made.

Finally, another reason exists why the prosecution's evidence of and argument about the defendant's misbehavior in prison in not a trigger for *Simmons*'s rule. In *Skipper v. South Carolina*, a majority of this Court held that a capital defendant has a Eighth Amendment right to present evidence of his adaptability to prison, as well as a due process right to present such evidence if the prosecution "specifically relies" on his future dangerousness in prison. 476 U.S. 1 (1986). The prosecution's presentation of evidence and argument about Petitioner's misbehavior while in pre-trial detention therefore goes to counter the inevitable defense adaptability case in mitigation. Said another way, the evidence and argument address the defendant's *Skipper* case that he is adaptable to prison, not raise under *Simmons* the defendant's future dangerousness to society. The South Carolina Supreme Court correctly so held. *Kelly*, 540 S.E.2d at 857.

Specific discussion is warranted here on evidence of escape attempts. Like any other bad act, escape is probative of

the prosecution's arguments in favor of retribution. Moreover, evidence of escape attempts is permissible given the inevitable defense case to show *Skipper*-style adaptability to prison. Most importantly, however, a defendant's parole ineligibility does nothing to rebut the fear that he may be an escape risk. *See Kelly*, 540 S.E.2d at 857. *See also Ramdass*, 120 S.Ct. at 2122 (evidence of parole ineligibility is of "uncertain materiality", in that it may be "overcome if a jury concludes that even if the defendant might not be paroled, he may escape to murder again"). *See generally State v. Singleton*, 326 S.E.2d 153 (S.C. 1985) (inmate on work assignment murders woman); *State v. Middleton*, 339 S.E.2d 692 (S.C. 1986) (inmate escapes from work detail and murders two women).

Since parole ineligibility does not rebut evidence or argument about Petitioner's misbehavior in prison, the South Carolina properly ruled that such evidence or argument does not trigger the *Simmons* rule.

D. It is not inappropriate for prosecutors to decide as a tactical matter whether or not to raise future dangerousness to society.

Petitioner seems to imply something untoward exists if prosecutors in South Carolina are allowed to make a "tactical decision" whether to raise future dangerousness to society and accept a *Simmons* instruction, or whether to not raise the issue and consequently avoid injecting parole considerations into the proceedings. First, as noted before, such a decision is expressly sanctioned in the *Simmons* concurrence. 512 U.S. at 176-77 (O'Connor, J., concurring) (if prosecution does not argue future dangerousness, state may decide that parole is not a proper

consideration for the jury even if the only alternative sentence is life without parole).[9]

Secondly, however, the prosecution does not achieve an unfair tactical advantage with such a decision; Petitioner overlooks that by avoiding express arguments and evidence of future dangerousness to society, a prosecutor gives up a significant arrow in his or her quiver which could attack mitigation and support a sentence of death.

Finally, there is no requirement that future dangerousness to society be an issue in every capital sentencing proceeding; indeed, some states prohibit jury consideration of future dangerousness as an aggravator. *See Teffeteller v. State*, 439 So.2d 840, 845 (Fla. 1983) ("no place" in Florida jurisprudence for [future dangerousness] argument); *Wisehart v. State*, 693 N.E.2d 23, 60 (Ind. 1998) (improper for prosecutor to argue future dangerousness as it is not a valid aggravating factor); *State v. Koskovich*, 776 A.2d 114 (N.J. 2001) (future dangerousness is not an aggravator in New Jersey). These states allow, however, evidence and argument on a defendant's prior record and the circumstances of the crime without concern that the jury necessarily must be focusing on the prohibited non-statutory aggravator of future dangerousness to society. *See, e.g. Allen v. State*, 662 So.2d 323, 331 (Fla. 1995) (prosecutor did not argue future dangerousness with reference to prior escape; argument went to "committed by person under sentence of confinement" aggravator); *Parker v. State*, 456 So.2d 436 (Fla. 1984) (prosecutor's reference to defendant's prior life with parole

---

[9] *See also Skipper*, 476 U.S. at 11 (Powell, J., concurring) (state could exclude evidence of defendant's post-arrest good behavior as long as not offered to rebut evidence or argument of defendant's future dangerousness in prison or non-adaptability to prison life).

sentences did not raise future dangerousness but merely argued aggravator of prior violent record).

Accordingly, even if prosecutors do make tactical decisions whether or not to raise future dangerousness, there is nothing unfair about such a practice. Either way, the defendant has not been prevented from denying or explaining information offered as a basis for death. *Gardner v. Florida*, 430 U.S. 349, 362 (1977).

II. The prosecution in Petitioner's case did not expressly raise future dangerousness to society but rather focused on retribution.

There is no question that the prosecution introduced evidence that Petitioner misbehaved in prison, talked of and planned escape attempts, was in a cell where someone was removing mortar from around the bricks, possessed a shank, and jokingly bragged about his crime. The state also highlighted the exceptionally grisly consequences of Petitioner's handiwork in murdering Shirley Shealy. Assuming this Court accepts the proposition, argued previously, that mere introduction of other bad acts, misconduct in prison, or grisly circumstances of the capital crime itself does not alone put future dangerousness in issue, then *Simmons* was not triggered by the evidence set forth above. The crucial question in this case is whether the solicitor's argument on that evidence entered within the realm of arguing future dangerousness to society.

When the prosecutor's argument is viewed as a whole, it is clear his main theme was retribution: death was the only appropriate sentence for Petitioner's crime. On multiple occasions the prosecutor told the jury that death was the punishment that fit the crime. JA 68, 256, 261, 275. As argued above, retribution is distinct from arguments of specific

deterrence, and does not implicate future dangerousness to society.

The prosecutor did repeatedly argue to the jury that Petitioner's crime was premeditated and planned. However, this was amply supported in the evidence, in that Petitioner used to work for Shealy at the KFC, knew her well, was aware the night deposits were in the safe and Shealy had the key, hid in the backseat of her car after hours, and carried gloves, a knife, and duct tape to the crime. Such arguments were entirely retributive and not in the context that Petitioner's premeditation against Shirley Shealy indicated he would pose a future danger to society.

The prosecution also highlighted the grisly circumstances of Petitioner's crimes. Again, however, they were argued to show Petitioner did not deserve mercy for his crime, and to support the statutory aggravating factor of physical torture. S.C. Code. Ann. § 16-3-20(C)(a)(1)(h) (Supp. 2000).

A. "Doesn't that make somebody a little more dangerous [to the victim]?"

Petitioner discusses portions of the testimony and prosecution's closing argument which deserve specific mention. Brief for Petitioner 18-20. Petitioner first points to the following statement of the prosecution in argument:

> SOLICITOR: Mercy? Mitigation? If you find it, folks, speak it out for what he's done. And, you know what, what did his own witness say. He doesn't have any mental illness. He's intelligent. He's not retarded. He's quick-witted. *Doesn't that make somebody a little more dangerous—*

> DEFENSE ATTORNEY: Objection, Your Honor.
>
> THE COURT: Just a moment. Yes, ma'am. State your grounds.
>
> DEFENSE ATTORNEY: The Solicitor has stipulated dangerousness is not an issue—
>
> SOLICITOR: *—For this lady, this crime on January the 5th, doesn't that make him more unpredictable for Shirley Shealy.* When you let your guard down and they stab you in the back. That's what we have here. That's what we do know. That's what he did. He made his own mother admit that. He made his own family victims.

JA 268-69 (emphasis added).

There is nothing to support Petitioner's contention that the solicitor momentarily forgot to avoid future dangerousness to society; if anything, it just as readily appears that defense counsel's objection cut the solicitor short before he had a chance to finish his thought. In any event, the solicitor *immediately* tied his "dangerous" comment into the particular crime committed against Shealy. The statements were part of the solicitor's argument that Petitioner facilitated his plan of robbery and murder by preying on Shirley Shealy, a good friend of his family likely to trust him, which made him more dangerous *for her*. Such a contention is purely retributive, that the circumstances of Petitioner's crime precluded mercy. The solicitor also was pointing out that Petitioner was under no mental illness or mental deficiency which might mitigate his callous premeditation. These statements were fair comments on the evidence and did not raise

future dangerousness. *See generally Donnelly v. DeChristoforo*, 416 U.S. 637, 647 (1974) (court should not lightly infer that prosecutor intended most damaging meaning with statement in closing).

B. "Bloody Billy, the butcher of Batesburg"

Petitioner next complains about how the solicitor referred to him during argument. The solicitor had been arguing that Petitioner did not deserve mercy because he had shown none, by reminding the jury of the extreme brutality of the crime, as well as its premeditation, as evidenced by Petitioner's equipping himself with tape, a dagger, and latex gloves. JA 262-67. As the solicitor described the crime's circumstances, he stated: "Keep on plunging, keep on slicing, hacking, bloody Billy, the butcher of Batesburg". The trial court sustained defense counsel's objection that the reference was inflammatory, but the solicitor continued:

> But they want you to think of him as Little Billy. Little Billy, the kid. I know another Billy, the kid, that he reminds me of. He's not a kid. He's a killer. And he committed a man-sized crime and he needs a man-sized punishment.

JA 268. The solicitor again called Petitioner the "butcher of Batesburg", but the trial court sustained the defense objection and ordered the comment stricken. JA 267-68.

The statement "Bloody Billy, butcher of Batesburg" in no way reflected on future dangerousness but merely emphasized the brutal nature of Petitioner's crimes. It followed the solicitor's graphic description of the attack on Shealy. JA 263-67. Whether the reference was inflammatory is not an issue on appeal. However, the statement was based in the evidence, because the crime was exceptionally bloody, and Petitioner stabbed Shealy so

repeatedly and deeply that "butchering" is a fair word. *Cf. United States v. Pungitore*, 910 F.2d 1084 (3rd Cir. 1990) (reference to defendants as "cold-blooded killers" and "mob killers" fair comment on the evidence). The statement referred to the crime Petitioner had already committed and did not raise future dangerousness. *See generally Donnelly v. DeChristoforo, supra.*

The prosecutor's reference to "Billy the Kid" also clearly was part of an argument against the mitigating factor of age, in that Petitioner was not a child but deserved a "man-sized punishment" for his crime. *See Simmons*, 512 U.S. at 181-82 (Scalia, J., dissenting) (argument did not raise future dangerousness but was part of response to mitigating factors). Such an argument is obviously retributive, and the passing reference to a western outlaw surely could not have so easily flagged future dangerousness to society in the jury's mind. *See generally Donnelly v. DeChristoforo, supra.*

C. "Murderers will be murderers."

Petitioner next mentions portions of the solicitor's discussion on Petitioner's behavior in jail. After stating that Petitioner had learned from his "mentor," jailhouse informant Matthew McCormack, the solicitor commented on the fact that Petitioner did not report the digging of the mortar around a cell's cinder block. The following then occurred:

> SOLICITOR: Oh, no. He doesn't have anything to do with it and that toothbrush he had with the metal tip in it, oh, that's just being a big man, to clean his fingernails. That's not to hurt anybody, not Ms. Marsha Price, the lady everybody says—

DEFENSE ATTORNEY: Objection, Your Honor. He's — I think he's going afield to what we stipulated to on the future problems.

SOLICITOR: I am talking about—

THE COURT: Solicitor, if you would, please limit your argument to what we discussed, sir.

SOLICITOR: I am talking about what happened from the witnesses who testified on this stand. And didn't you hear a woman named Marsha Price who worked at the Lexington County Jail. Didn't they say that she was the one most gullible, the one you could take hostage? Didn't you hear he had that shank behind his back calling her to the door—

DEFENSE ATTORNEY: Objection, Your Honor—

SOLICITOR: —If you didn't hear that, disregard it—

DEFENSE ATTORNEY: This is going outside the scope of the situation.

THE COURT: Overruled—

DEFENSE ATTORNEY: —Stipulation—

THE COURT: Overruled.

SOLICITOR: If you didn't hear somebody testify to that, folks, you hold it against me and not

against the family out here, please. But I swear I heard that from the stand. But you take it as you heard it. That's just shanks will be shanks. And murderers will be murderers. And he is the cold-blooded one right over there.

JA 270-72.

The state supreme court correctly found that the statements did not address future dangerousness to society as a whole. *Kelly*, 540 S.E.2d at 857. The "murderers will be murderers" statement clearly related to Petitioner's plan to take a guard hostage while in pretrial detention. Assuming the statement did raise future dangerousness, it went solely to Petitioner's future dangerousness in prison and lack of adaptability to prison life, which, as argued before, does not trigger *Simmons*.

D. "More frightening than a serial killer . . ."

Petitioner next points to the following argument:

SOLICITOR: No prior convictions of violence against another person; below the age of eighteen. You know something, a person that commits an uncharacteristic and an unpredictable crime is more frightening than a serial killer, more frightening than a career criminal. Is that person un-characteristicall [sic], because he hadn't done it before? You kind of trust them a little bit.

Unpredictably because of his age. You don't think they will do anything. Those people are supposed to be kind, supposed to be your friend, supposed to be nice; supposed to be kind.

> Well, that's the kind that while they are hugging you with kindness, they're getting ready to kill you with kindness. Does that go in his favor—

JA 260-61.

This argument was the solicitor's challenge to the mitigating factors of the defendant's age and lack of a prior violent record. Indeed, rather than say Petitioner was a future danger, the solicitor called his crime uncharacteristic, and thus expressly recognized the obvious: that Petitioner was not a career criminal or serial killer. The solicitor was merely arguing about the circumstances of Petitioner's crime, that he stalked and killed a close family friend who would have been more trusting and vulnerable. The solicitor went on to say that such a circumstance made Petitioner's crime "bad enough on its own" that the lack of a prior record should not preclude the death penalty. JA 261. The argument merely highlighted the Petitioner's premeditation in a retributive manner, which does not raise future dangerousness to society. The state supreme court correctly so found. *Kelly*, 540 S.E.2d at 857.

E. Cross-examination on reports in Petitioner's mental health records

Finally, Petitioner asserts the prosecution raised future dangerousness with the solicitor's cross-examination of defense experts on reports in Petitioner's mental health records that he obsessively thought of killing people "who pissed him off", and that he had a history of torturing and killing small animals. JA 194-99, 218. At either trial or direct appeal, Petitioner did not assert this cross-examination as a reason why the prosecution had raised future dangerousness to society. The state supreme court did not address this cross-examination in either its description of the facts or its resolution of the *Simmons* issue. *Kelly*, 540 S.E.2d

at 857. The state appellate court never had an opportunity to address this cross-examination. *State v. Sullivan*, 282 S.E.2d 838 (S.C. 1981) (issue not argued in the brief cannot be considered on appeal); *State v. Thomas*, 156 S.E.2d 169 (S.C. 1930) (issue not ruled upon by the trial judge is not preserved for appeal). Therefore, consideration of it is not preserved for review before this Court. *See Bailey v. Anderson*, 326 U.S. 203 (1945) (state appellate court must actually consider point not raised to trial court in order for United States Supreme Court to have jurisdiction).

In any event, the defense stated the witness's only purpose was to testify as to adaptability to prison, and when the cross-examination is read in context, it is clear it was directed towards challenging the witness's adaptability opinion. R. 1935, 1926-59. The defense first raised the issue during direct examination, by eliciting that Petitioner's talk of violent fantasies and escape was just typical "big talk" often seen from younger, smaller-built, and thus more vulnerable inmates. JA 191. The defense also elicited on direct that Petitioner had no real history of violence, that he was finding "creative ways to avoid violence" in jail, and that he was not dangerous in prison. JA. 181-88, 191-92. The prosecution then was certainly entitled to explore whether Petitioner's violent fantasies and past torturing and killing of small animals affected the witness's expert opinion on Petitioner's adaptability and mental illness. The prosecution cannot be viewed as having raised future dangerousness to society as a basis for death, or the defense have a due process right to rebut something that the prosecution raised, when the prosecution merely cross-examined the defense's mental health expert on how

relied-upon information in the mental health records affected the expert's opinion.[10]

Further, most of the cross-examination focused on Petitioner's possession of a shank, plan to take a guard hostage, and Petitioner's likely experience in prison. R. 1927-59. The prosecution during argument never mentioned or "used" the reports of Petitioner's obsessive thoughts of killing people or reports of his history of torturing and killing small animals. Thus, this situation is unlike that in *Simmons*, where the prosecution on cross-examination specifically asked and got the defense expert to admit that the defendant was dangerous, and then pointed that testimony out again as part of a specific deterrence argument to the jury. *Simmons* JA 91-92, 102. Here, the mere passing reference to obsessing about killing in the context of the entire cross-examination, and indeed the entire trial, would not have flagged the issue in jury's mind such that due process required a parole ineligibility charge.

In *Simmons*, the prosecutor asked the jury to be "concerned about what to do with [the defendant] now that he is within our midst". The prosecution there contended:

> Your verdict should be a response of society to someone who is a threat. Your verdict will be an act of self-defense.

---

[10] Indeed, as a technical matter there was no substantively admissible evidence of Petitioner's obsessiveness at all; thus, the prosecution did not "present" any such evidence. *See* Rule 802, SCRE (hearsay); *United States v. Madrid*, 673 F.2d 1114 (10th Cir. 1982) (admission of hearsay evidence under Rule 703 is considered solely as basis for expert's opinion and not as substantive evidence). *See generally State v. Hutto*, 481 S.E.2d 432 (S.C. 1997) (discussing Rule 703, SCRE).

512 U.S. at 182. Even those statements created division among the members of this Court as to whether they raised future dangerousness. The prosecution in *Simmons* even went on to argue that "whether or not the sentence of death for Jonathan Simmons will deter anybody else, I submit to you that the fact that it will deter him is plenty", and pointed out that the defendant's own expert called him dangerous. *Simmons* JA 102.

The prosecution here never even got close to such statements; at best, Petitioner can take isolated passages out of context. Since there was nothing presented which required rebuttal with evidence of parole ineligibility, there was no violation of due process.

III. Since the jury never inquired about parole and the trial judge did not broach the issue by giving a "no concern" charge, *Simmons* was satisfied by the judge's plain meaning instruction and the defense's argument to the jury that Petitioner would never leave prison.

Two important factors distinguish Petitioner's case from that in *Simmons*, and even *Shafer*, for that matter. First, unlike those cases, the jury in Petitioner's case did not inquire about parole eligibility. Thus, there is nothing whatsoever to indicate that the jurors were concerned at all with the possibility of Petitioner's future release when they decided death was appropriate. *Cf. Shafer v. South Carolina*, 121 S.Ct. 1263, 1273-74 (2001). Second, unlike *Simmons* and *Shafer*, the jurors in this case were not charged that parole eligibility or ineligibility was not for their consideration. *Cf. Simmons*, 512 U.S. at 170-71; *Shafer*, 121 S.Ct. at 1274. Thus, there is no reason to think that the jurors were told parole was available, but "for some unstated reason, [they] should be blind to that fact". *Simmons*, 512 U.S. at 170. If anything, they heard testimony that goodtime reduction was not a possibility for Petitioner. JA 236-37.

Three Justices in *Simmons* stated that its mandate would be satisfied if the defendant's parole ineligibility is presented to the jury through *either* an instruction from the court or argument of defense counsel. 512 U.S. at 169, 174, 177.[11]

In her sentencing phase opening statement, Petitioner's counsel told the jury that their recommendation would be "the sentence ac.ually imposed and the sentence that will actually be carried out". R. 1660. In sentencing phase closing, Petitioner's counsel repeatedly told or implied to the jury that Petitioner would never leave prison if he received a life sentence. Petitioner's counsel said that "a wife and a kid and car" would "never happen for Billy Kelly, ever", that life in prison was a "horrible", "severe" and "true" punishment, and that "life in prison is worse than [the death penalty] because it's a slow death". Counsel concluded his argument by saying:

> I do believe the right think in this particular case and the appropriate sentence is life in prison, a long time for somebody that's twenty-years old. A long, slow death. He'll never see the light of daylight again.

R. 2060 lines 7-12; JA 276-80. When combined with the judge's charge that life imprisonment was to be understood in its plain meaning, the defense arguments prevented the jury from being faced with the "false dilemma" condemned by *Simmons*. 512 U.S. at 171. Since there is no reason to think that the jurors did not accept that the "plain meaning" of life imprisonment is

---

[11] In *State v. Southerland*, 447 S.E.2d 862 (S.C. 1994), *overruled on the grounds in State v. Chapman*, 454 S.E.2d 317 (S.C. 1995), the South Carolina Supreme Court held that trial courts had to give life without parole instructions if the *Simmons* was triggered. However, the issue before this Court in the present case concerns only the federal constitutional mandate in *Simmons*, and not any purely state law expansion of the rule.

imprisonment for life, the judge's charge and defense argument satisfied due process, regardless of whether the prosecution raised future dangerousness.

IV. South Carolina may remain true to its state law rule that disfavors introduction of collateral circumstances such as parole, as long as the state honors the due process rule of *Simmons* in the limited situations to which it applies.

Subject only to the due process rule of *Simmons*, states retain "some discretion in determining the extent to which a sentencing jury should be advised of probable future custody and parole status in a future dangerousness case". *Ramdass v. Angelone*, 120 S.Ct. 2113, 2119 & 2121 (2000). South Carolina has long reasoned that since the jury's only responsibility is "to determine in the first instance whether punishment should be life or death", the jury should not "speculate on the possible effect of pardon or parole", or concern itself with "the time, place, manner, and conditions of execution or incarceration". *See, e.g. State v. Torrence*, 406 S.E.2d 315, 322-23 (S.C. 1991). Indeed, even a defendant sentenced to life without parole under South Carolina's murder statute could still benefit from pardon or clemency. *See* S.C. Code Ann §§ 24-21-920 to -1000 (1977 & Supp. 2000). Moreover, a parole ineligibility charge is of "uncertain materiality", and can be overcome if a jury concludes the defendant may escape, be pardoned, benefit from a change in state laws, or be dangerous to society in prison. *Ramdass*, 120 S.Ct. at 2122. South Carolina seeks to avoid introduction of such collateral concerns into the sentencing proceeding. As long as South Carolina does not prohibit defendants from using their parole ineligibility for rebuttal when it is relevant, that is, when prosecutors make a case for death by affirmatively raising future dangerousness to society, then South Carolina may remain true to its state law rule.

In this case, the prosecution did not expressly assert that Petitioner would be dangerous to society in the future, nor was it a necessary inference from the evidence. There is no indication that the jury was concerned with or confused about Petitioner's parole ineligibility, and defense counsel made the point that Petitioner would never leave prison if sentenced to life. The South Carolina Supreme Court correctly concluded that Petitioner's due process rights were not violated.

CONCLUSION

For the foregoing reasons, this Court should affirm the South Carolina Supreme Court's decision upholding Petitioner's sentence for the murder of Shirley Shealy.

Respectfully submitted,

CHARLIE CONDON
Attorney General for the
State of South Carolina

JOHN W. McINTOSH
Chief Deputy Attorney General

DONALD J. ZELENKA
Assistant Deputy Attorney General

*S. CREIGHTON WATERS
**Counsel of Record*
Assistant Attorney General
Post Office Box 11549
Columbia, South Carolina 29211
(803) 734-3680
Counsel for Respondents

October 17, 2001